

25CMCV00175 25CMCV00175

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-04

Motion: DEFENDANT'S MOTION FOR RECONSIDERATION

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Case Number: 25CMCV00175 Hearing Date: August 4, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

NOVA CASUALTY COMPANY,

Plaintiff,

vs.

NERY H.

HERNANDEZ,

Defendant.

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CASE NO: 25CMCV00175

[TENTATIVE]

ORDER RE: DEFENDANT'S MOTION FOR RECONSIDERATION

Dept.

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DATE:

August 4, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 01/31/2025

TRIAL:

None set

MOVING

PARTY: Defendant Nery H.
Hernandez

RESPONDING

PARTY: Plaintiff Nova Casualty Company

1. Background

This is a subrogation action.

Plaintiff Nova Casualty Company ("Plaintiff") alleges that on March 12, 2024, Defendant Nery H. Hernandez ("Defendant") purchased some items contained within a storage unit located at 7520 Alondra Blvd., Paramount, CA 90723 (the "Property"). Plaintiff alleges that Defendant mishandled items within the Property, causing a fire to break out on the Property and damage the Property, which Plaintiff had insured. Plaintiff alleges that it was obligated to pay a sum of \$156,066.48 in connection with this fire.

Defendant's

default was entered on March 25, 2026. On June 4, 2026, the court denied Defendant's motion to set aside the default.

2. Discussion

Defendant

moves for reconsideration of the court's June 4, 2026 order denying Defendant's motion to set aside the default. Defendant contends that, since the hearing, she has obtained new facts that were not reasonably obtainable before the hearing and that support reconsideration of the prior order. In opposition, Plaintiff contends that Defendant has failed to show that the new facts were not reasonably obtainable before the hearing and that the new facts are nonetheless insufficient to support reconsideration of the prior order.

Code

of Civil Procedure § 1008, subdivision (a) provides:

When an

application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of

written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

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court acts in excess of jurisdiction when it grants a motion to reconsider that is not based upon “new or different facts, circumstances or law.” (Gilberd v. AC Transit (1995) 32 Cal.App.4th 1494, 1499 (Gilberd).) Motions for reconsideration are restricted to circumstances where a party offers the Court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (Ibid.)

Moreover,

there is a strict requirement of diligence, which means the moving party must present a satisfactory explanation for failing to provide the evidence or different facts earlier. (Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 690.) The burden under Section 1008 is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at trial. (New York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212-213.)

Defendant

contends that new facts have arisen demonstrating that she did not actually receive notice of this action because service was conducted by substitute service upon Erika Hernandez, Defendant's daughter, who did not provide the served papers to Defendant until August or September 2025. Defendant contends that prior to the court's ruling, Defendant and his counsel were unable to obtain reliable information regarding the circumstances of substituted service or the identity and whereabouts of the individual who accepted service.

However, the

proof of service filed by Plaintiff on February 25, 2025 clearly states that service was conducted by substitute service upon Erika Hernandez on February 7, 2025. This information was readily available to Defendant and his counsel prior to the court's June 4, 2026 order.

Defendant also

contends that his counsel was unable to contact Erika Hernandez until after the court's June 4, 2026 order, at which time he learned that the served papers were not provided to Defendant until August or September 2025 because Defendant did not recall that the papers were not received until August or September 2025, despite having been served on February 7, 2025. Forgetfulness does not constitute diligence such that Defendant could not reasonably have learned these facts prior to the court's June 4, 2026 order.

Defendant has

therefore failed to demonstrate a satisfactory explanation for failing to provide these facts in his original motion to set aside the default. The court will accordingly deny Defendant's motion for reconsideration.

3. Conclusion

Based on the

foregoing, the court DENIES Defendant's motion for reconsideration.

Defendant is ordered to give notice.

IT IS SO ORDERED.

DATED: August 4, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court